

Provided that the statement is-

- (a) made in reply to a question which is required by the Commissioner to answer ; or
- (b) relevant to the subject-matter of the inquiry.

Comment

Section 117 protects the person against civil or criminal proceedings in respect or any evidence given by him in an inquiry before the Commissioner.

118. Procedure, etc. - Any railway administration or the Commissioner conducting an inquiry under this Chapter may send notice of the inquiry to such persons, follow such procedure, and prepare the report in such manner as may be prescribed.

Comment

Section 118 deals with the notice of the inquiry the procedure to be followed and the preparation of the report.

119. No inquiry, investigation, etc. to be made if the Commission of Inquiry is appointed. - Notwithstanding anything contained in the foregoing provisions of this Chapter, where a Commission of inquiry is appointed under the Commissions of Inquiry Act, 1952 (3 of 1952) to inquire into an accident, any inquiry, investigation or other proceeding pending in relation to that accident shall not be proceeded with, and all records or other documents relating to such inquiry shall be forwarded to such authority as may be specified by the Central Government in this behalf.

Comment

Section 119 provides that no inquiry or investigation to be made if the Commission of inquiry is appointed under the Commissions of Inquiry Act, 1952 to inquire into any accident, etc.

120.- Inquiry into accident not covered by Sec. 113.- Where any accident of the nature not specified in Sec. 113 occurs in the course of working a railway, the railway administration within whose jurisdiction the accident occurs, may cause such inquiry to be made into the causes of the accident, as may be prescribed.

Comment